

SENATE BILL 2732

By Bailey

AN ACT to amend Chapter 492 of the Acts of 1901; as amended by Chapter 325 of the Private Acts of 1972; Chapter 74 of the Private Acts of 1985; Chapter 45 of the Private Acts of 1993 and Chapter 166 of the Private Acts of 1994; and any other acts amendatory thereto, relative to the town of Monterey.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 492 of the Acts of 1901, as amended by Chapter 74 of the Private Acts of 1985, Chapter 166 of the Private Acts of 1994, and any other acts amendatory thereto, is amended by deleting the third sentence in Section 3.

SECTION 2. Chapter 492 of the Acts of 1901, as amended by Chapter 325 of the Private Acts of 1972, Chapter 74 of the Private Acts of 1985, Chapter 45 of the Private Acts of 1993, Chapter 166 of the Private Acts of 1994, and any other acts amendatory thereto, is amended by deleting the fifth sentence of the second paragraph of Section 4 and substituting:

Such election shall be held at the next following regularly scheduled election in November.

SECTION 3. Chapter 492 of the Acts of 1901, and any other acts amendatory thereto, is amended by deleting the language "in case the Mayor declines to serve as Recorder," from Section 5.

SECTION 4. Chapter 492 of the Acts of 1901, and any other acts amendatory thereto, is amended by adding the following new Section 18 and by renumbering the subsequent sections accordingly:

Section 18. Be it further enacted, That there is hereby created the Office of Town Administrator for the town of Monterey.

(a) **Creation of Office of Town Administrator.** The Board of Mayor and Alderman shall be responsible for the selection and appointment of the

Administrator. The Board of Mayor and Aldermen shall fix the salary of the Administrator. The Administrator shall be selected solely based on his or her training, experience, and other administrative qualifications. Minimum qualifications shall include an associate's college degree, and appropriate training or experience in municipal management, utility management, or public administration. CMFO certification is required. The Town Administrator shall give full time to the duties of his office.

(b) **Residency.** The Town Administrator must be a resident of Putnam County within six (6) months of employment.

(c) **Bond.** The Town Administrator or acting Town Administrator shall furnish a corporate surety bond to be approved by the Board of Mayor and Aldermen in such sum as may be determined by the said Board and shall be conditioned upon the faithful performance of the duties imposed upon the Town Administrator or acting Town Administrator as herein prescribed. Any premium for such bond shall be a proper charge against the town of Monterey.

(d) **Duties of Administrator.** It shall be the duty of the Town Administrator to supervise and coordinate appropriate activities of each department of the town according to the policies and directives of the Board of Mayor and Aldermen, including the following specific duties:

(1) To keep the Board fully advised as to the conditions and needs of the Town.

(2) To serve as chief financial officer of the Town.

(3) To work in conjunction with the Town Recorder annually to provide a budget for each department of the town that is under the control of the Board of Mayor and Aldermen.

(4) To determine, implement, and administer appropriate personnel and pay structure for the Town.

(5) To participate, if needed, with the Civil Service Board in applicant interviews.

(6) To serve as liaison officer for the Board of Mayor and Aldermen in coordinating the activities of the Board with the activities of the town under separate boards, including the Civil Service Board.

(7) To make recommendations to the Board for improving the quality and quantity of public services to be rendered by the officers and employees to the inhabitants of the town.

(8) To select, prioritize, and evaluate overall feasibility of programs and projects involving public works and public improvements, to recommend said projects to the Board, to establish priorities for accomplishment, and to direct the efforts of town employees toward this end.

(9) To improve quality of life, working in concert with the Community Relations manager.

(10) To report to the Board the condition of property and equipment of the town, and to recommend repairs and replacements as needed.

(11) Responsible for all town tourism duties.

(12) To administer the purchasing activities of the town.

(13) To perform such other duties as may be required of him/her by official action of the Board of Mayor and Aldermen.

(e) **Departmental Cooperation.** It shall be the duty of all subordinate officers and the Town Recorder and the Town Attorney to assist the Town Administrator in administering the affairs of the town efficiently, economically, and harmoniously.

(f) The Town Administrator shall attend all meetings of the Board of Mayor and Aldermen, and may attend meetings of any other commissions, boards, and committees created by the Board upon his own volition or upon direction of the Board. In attending meetings of commissions, boards, and committees, the Town Administrator shall be heard as to all matters upon which he wishes to speak, and he shall fully cooperate with all commissions, boards, and committees appointed by the Board.

SECTION 5. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the town of Monterey. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 6. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 5.